INTERNATIONAL RUBBER ASSOCIATION

Established: 24th September 1971

c/o THE THAI RUBBER ASSOCIATION

45,47 CHOTEVITTAYAKUL 3 ROAD, HATYAI, SONGKHLA 90110 THAILAND

TELEPHONE: +66-74-429311, +66-74-429011/012 ● FAX: +66-74-429312

EMAIL: secretariat@irainfo.org / secretariat.irainfo@gmail.com

Our ref: IRA 002/2026 6 February 2026

To: Members of the IRA Technical Sub-Committee

Attachment: 1. Draft - IRA MC PROVISIONAL AGENDA 2026

2. Draft – 25th IRA BGM PROVISIONAL AGENDA

3. 2Q Draft IRA Flexitank Bulk Latex Contract 311225

4. 3Q Draft IRA Tank Container Bulk Latex Contract 311225

5. Registration Form

Dear Sir/Madam,

IRA Technical Sub-Committee Meeting 1/2026, IRA Management Committee Meeting 2026 and 25th IRA Biennial General Meeting

We are pleased to invite you to the IRA Technical Sub-Committee Meeting 1/2026, the IRA Management Committee Meeting 2026, and the 25th IRA Biennial General Meeting. These meetings will be held in **a hybrid format** at the Nutmeg Room, Level 2, Orchard Hotel Singapore, in conjunction with the RTAS Lunar New Year Dinner 2026.

In preparation for these sessions, we have attached two IRA contract drafts for your review and consideration:

Item 3: 2Q Draft IRA Flexitank Bulk Latex Contract
Item 4: 3Q Draft IRA Tank Container Bulk Latex Contract

Meeting Schedule

Date: Saturday, 7 March 2026 (Singapore Time)

Venue: *Nutmeg Room, Level 2, Orchard Hotel Singapore*

3.30 p.m.	IRA Technical Sub-Committee Meeting 1/2026
4.00 p.m.	IRA Management Committee Meeting 2026
5.00 p.m.	25th IRA Biennial General Meeting
6.00 p.m.	Dinner hosted by IRA

(The meeting link and meeting documents will be circulated in due course.)

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Kindly find attached the draft provisional agendas for your consideration. Please let us know should you wish to propose any additions or amendments.

Additionally, kindly confirm the names of the representatives from your organization who will be attending. Please complete and return the attached Registration Form to secretariat@irainfo.org no later than 23 February 2026.

Thank you for your continued support and participation.

Yours sincerely,

(Supadetch Ongsakul)
Executive Secretary

25 December 2025

Draft

International Rubber Association Management Committee Meeting 2026

PROVISIONAL AGENDA

1. CHAIRMAN REMARKS

2. ADOPTION OF PROVISIONAL AGENDA

3. CONFIRMATION OF MINUTES

4. MATTERS ARISING

> **4.1 The 132nd and 133rd Series of Proficiency Testing Program for Technically Specified Rubber**
>
> **4.2 Membership of IRA**

5. MATTERS FOR CONSIDERATION AND APPROVAL

> **5.1 Proposed Amendments to the New Draft of IRA Contract for Bulk Latex**

6. FINANCIAL REPORTS FOR THE YEAR ENDED 31 DECEMBER 2025

7. AMENDED BUDGET 2026 AND PROVISIONAL BUDGET 2027

8. OTHER MATTERS

25 December 2025

Draft

25th International Rubber Association Biennial General Meeting

PROVISIONAL AGENDA

1. CHAIRMAN ADDRESS

2. ADOPTION OF PROVISIONAL AGENDA

3. CONFIRMATION OF MINUTES

4. FINANCIAL REPORTS FOR THE YEAR ENDED 31 DECEMBER 2024 and 2025

5. AMENDED BUDGET 2026 AND PROVISIONAL BUDGET 2027

6. ELECTION

6.1 Management Committee

6.2 Chairman and Deputy Chairman

7. APPOINTMENT OF AUDITORS

8. OTHER MATTERS

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Registration Form

IRA Technical Sub-Committee Meeting on Draft ICs for Bulk Latex 1/2026

International Rubber Association Management Committee Meeting 2026

25th International Rubber Association Biennial General Meeting

7 March 2026, 3.30 p.m. – 6.00 p.m.

Nutmeg Room Level 2

Orchard Hotel Singapore

Organization/Association:..

1. Name (Mr./Mrs./Ms.)..

Position.. E-mail..

[ ] Attend the meeting on-site

[ ] Attend the meeting online

2. Name (Mr./Mrs./Ms.)..

Position.. E-mail..

[ ] Attend the meeting on-site

[ ] Attend the meeting online

3. Name (Mr./Mrs./Ms.)..

Position.. E-mail..

[ ] Attend the meeting on-site

[ ] Attend the meeting online

4. Name (Mr./Mrs./Ms.)..

Position.. E-mail..

[ ] Attend the meeting on-site

[ ] Attend the meeting online

Kindly email us the Registration Form at secretariat@irainfo.org by 20 February 2026.

<ASSOCIATION NAME>

PRESERVED RUBBER (*Hevea brasiliensis*) LATEX BY CARRIAGE IN FLEXITANK CONTAINERS

INTERNATIONAL CONTRACT

We have this day SOLD / BOUGHT upon the terms of this Contract, TO / FROM : ....

including the Conditions hereinafter contained or referenced, the following:

Contract No.:

Latex Type (including preservative):

Quantity: Shipment / Landed

Packing in specified Flexitank Containers only

From (Port):

Destination:

Contract Type (CIF/C&F/FOB):

Price per kilogramme or lb (Wet Weight):

Freight: Prepaid / Payable at destination

Shipment Period/Vessel:

Broker/Intermediary: Brokerage/Commission:

Payment:

Weighing/Sampling at: (Port of Shipment/Port of Discharge/Factory)

Arbitration: Regional Centre (otherwise at ………………)

Remarks:

Subject to the Regulations and Conditions governing the International Contract for Preserved Rubber (*Hevea brasiliensis*) Latex By Carriage In Flexitank Containers and to the Special Trading Terms and Conditions of the <Association Name> in force at the date of this Contract.

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	RTAE Remarks 15-12-25	MRE/FRTAM Remarks
1. General: **1.1** When preserved rubber latex is sold for shipment by month or for a specified part of a month, each shipment is to be treated as a separate contract.		Agreed
1.2 For shipment in flexitank container loads, each container load shall be treated as a separate contract but bearing the same contract number with a sequential numeral to differentiate.	No objection – though perhaps too prescriptive	1.2 For shipment in flexitank container loads, each container load shall be treated as a separate contract but carrying the same contract number with **/1**, **/2** etc to differentiate.
1.3 Unless the context otherwise requires, words importing the singular number only shall include the plural number, and words importing the plural number only shall include the singular number, and words importing persons shall include firms and corporations.		Agreed
1.4 Minor typographical errors in the printing of an individual contract shall not void the contract.		Agreed
2. Quantity: **2.1** Contracts shall be for specified quantities only.		Agreed
2.2 Shipment quantities shall consist of full flexitank containers suitable for the transport of latex and fit for export and in accordance with clause 6.1 below.		Agreed
2.3 Disputes arising over variances between specified quantities and quantities actually shipped shall be settled between Buyer and Seller, or, failing such agreement, subject to arbitration.		Agreed
2.4 The word 'ton' shall mean a metric ton of one thousand (1,000) kilogrammes. If the contract weight is expressed in avoirdupois two point two zero four six (2.2046) lbs shall equal one (1) kilogramme.		Agreed
2.5 When the word 'about' is used to qualify quantities contracted, no excess or deficiency between contracted and shipped weights shall be greater than one half (½) per cent of the contract quantity or for any monthly portion of a contract.		Agreed

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	RTAE Remarks 15-12-25	MRE/FRTAM Remarks
2.6 Any excess or deficiency between contracted and shipped weights above one-half (½) per cent up to and including two (2) per cent shall be invoiced or invoiced back, as the case may be, at the contract price.		Agreed
2.7 Should the excess or deficiency be greater than two (2) per cent, the whole of the excess or deficiency over the contract quantity or any monthly portion of the contract quantity, shall, failing agreement between Buyer and Seller, be invoiced or invoiced back, at a price fixed by arbitration.		Agreed
2.8 Any difference in shipment and landed weights excludes theft, pilferage and damage in transit. **2.9** No accounts shall be rendered for less than ten (10) United States dollars or its equivalent (excluding brokerage).		Agreed
3. Weighing: **3.1** Seller shall provide a weight-note which states (a) the nett weight of latex shipped and (b) the gross weight of latex, flexitank and ancillaries. The difference in weight (b) minus weight (a) shall be the tare weight of the empty flexitank and ancillaries. Buyer shall use that same tare weight to determine the weight of latex shipped.		Agreed
3.2 Buyer shall weigh the whole delivery vehicle on the factory weighbridge on arrival to determine the gross weight. After discharging the latex, Buyer shall remove the empty flexitank and ancillaries from the container and weigh the container and vehicle. To that container and vehicle weight shall be added the flexitank and ancillaries tare weight provided by Seller as in clause 3.1 above. The difference between the gross weight and the weight after discharge plus the flexitank and ancillaries tare weight is the weight of latex delivered.		Agreed
3.3 The weighbridge used shall be maintained to public weighbridge standard at destination. The driver of the delivery vehicle, if not an employee of the Buyer, shall be the Seller's representative at the weighing.		Agreed

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	**RTAE Remarks 15-12-25**	**MRE/FRTAM Remarks**
3.4 Buyer claiming an adjustment by reason of the nett landed weights differing from the nett shipping weights, as provided for in clauses 2.6 and 2.7, shall provide within fifteen (15) business days of the date of discharge of the latex at the port of discharge or within three (3) business days upon arrival at the consumer's factory, whichever is earlier, a copy of the nett landed weights as specified in clause 3.2 above.		Agreed
3.5 If a weight deficiency is found and it exceeds one half (½) percent of the invoiced weight, the cost of weighing shall be borne by the Seller, otherwise it shall be borne by the Buyer.		Agreed
4. Insurance: **4.1** Terms of insurance shall be as agreed between Buyer and Seller at the time of the contract and cover shall be arranged on a warehouse-to-warehouse basis.	These are all FCLs sealed at seller's factory and unsealed at buyers factory so warehouse to warehouse appropriate. Drum latex insurance covers conventional shipment from over ship's rail.	**4. Insurance:** **4.1** Terms of insurance shall be as agreed between Buyer and Seller at the time of the contract ~~and cover shall be arranged on a warehouse-to-warehouse basis.~~ RTAE to justify the rational of the additional part as the same clause in drum ends after the word contract.
5. Shipment: **5.1** To be shipped by vessel or vessels loading or commencing to load in port of shipment (and loading continuously therein till date of shipment), per terms of contract, with transit direct and/or indirect, with liberty to call and/or tranship at other ports.		Agreed
5.2 The latex must be shipped by a vessel scheduled to sail to the port of destination or any alternative destination as mutually agreed between Buyer and Seller, or in the case of transshipment must be on a through Bill of Lading, or otherwise the Bill of Lading must be endorsed by, or a certificate obtained from the Shipping Company that transshipment has been effected and that the latex is actually on board a vessel scheduled to sail as above.		Agreed
5.3 When latex is sold for shipment by month or for a specified part of a month, each shipment shall be treated as a separate contract. Each container shall be treated as a separate contract for the settlement of weight or quality claims though more than one container may be shipped on a single Bill of Lading.	This contract refers only to FCL flexitank containers!	Agreed When Latex is sold for monthly shipment or for a specified part of a month's shipment, each month's or specified part of a month's shipment to be treated as a separate contract and carry an individual Bill of Lading. Each Bill of Lading shall be treated as a separate contract in respect of

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	**RTAE Remarks 15-12-25**	**MRE/FRTAM Remarks**
		conventional break-bulk shipments but where shipment is effected in containers, each container shall be treated as a separate contract.
5.4 Bill of Lading date shall be proof of time of shipment in the absence of conclusive evidence to the contrary.		Agreed
5.5 A Bill of Lading dated in the month immediately following the contractual month(s) shall be a good tender provided that it contains the following warranty endorsed on the Bill of Lading and signed by the shipowners or on their behalf by their authorised agents. *Warranted that the vessel commenced loading in the port of shipment in (month) and has been continuously loading therein until date of shipment which is the date of this Bill of Lading.*		Agreed
5.6 A Bill of Lading dated in the month immediately preceding the contract month(s) shall be tender provided that it contains the following warranty endorsed and signed as above: *Warranted that the vessel has been continuously loading in the port of shipment since the date of this Bill of Lading and that the date of its final departure from the port was ………………………………* (This date must be within the contract month(s)).		Agreed
5.7 If under the terms of this contract, the Buyer has the obligation to declare a port of destination and/or nominate a vessel and fails to do so by the fifth (5th) business day prior to the month of shipment, then the latex may be shipped to a port in the country of destination or if no country of destination has been stated, to a port customarily serving the country in which the Buyer is domiciled, at the Seller's option but Buyer to be notified by receipt-acknowledged electronic communication not later than three (**3**) business days after the fifth (5th) business day prior to month of shipment.		Agreed
5.8 A Seller who has the option to ship from more than one port must declare the port from which he intends to ship on or before the sixth (6th) business day prior to the month of shipment to enable the Buyer to fulfil his obligation as stipulated in clause 5.7		Agreed
5.9 In the case of contracts calling for shipment through a specified period, where cargo is shut-out, or a vessel omits ports specified in the contract, and when no other vessel is available during the shipment period, the Buyer or the Seller shall be entitled to claim shut-out and invoke clause 10**,** upon production of an appropriate certificate issued by the shipping company or	Agreed should refer to clause 10 not clause 9	Agreed RTAE To confirm if it is referred to clause 9-Claims or clause 10-Frustration of contract

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	**RTAE Remarks 15-12-25**	**MRE/FRTAM Remarks**
its authorised agent.		
5.10 If the latex has been sold for shipment on a named vessel, and this vessel, through change of schedule, should omit ports specified in the contract or the latex should be shut-out of said vessel, the party responsible for supplying the space shall, within nine (9) calendar days after being informed, nominate the next vessel on which space is available to the required port scheduled to sail not earlier than the scheduled sailing date of the named vessel (failing which the other party shall be entitled to nominate the vessel).		Agreed
5.11 Should the loading date for the substituted vessel be more than three (3) weeks after the loading date for the original nominated vessel, all additional expenses related to the delayed shipment accrued or incurred at the loading end, shall be for the account of the party responsible for supplying the space.		Agreed
6. Packing: **6.1** Flexitanks used shall be new one-way disposable flexitanks supplied with a door-end bulkhead and harnesses, if specified by the manufacturer. Flexitanks, bulkheads and harnesses shall become the property of Buyer on delivery and must be removed from the container after unloading the latex. The party supplying the flexitanks must ensure the flexitank model appears on the Container Owners Association Flexitank Quality Management List (COA-FQML) and shall provide proof to the party arranging insurance. The capacity of the flexitank provided shall be between twenty (20) and twenty-two (22) metric tons of latex. Buyer shall inspect seals on the container doors and on the discharge valve. Absent or broken seals, unless replaced by Customs, must be reported to Seller before any discharge of latex. Buyer may reject the flexitank container of latex if the seals are not intact.		Agreed
7. Quality: **7.1** Unless otherwise specified in this contract, latex shall comply with the type and grade requirements of ISO natural rubber latex concentrate — centrifuged or creamed, ammonia-preserved types — specifications, ISO 2004 – 2024 (hereinafter referred to as ISO 2004 – 2024) or such subsequent standard adopted by the Management Committee of the International Rubber Association at the time of contract.	This clause offers a specification model but in no way restricts the specification Buyer and Seller may agree.	Agreed

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	**RTAE Remarks 15-12-25**	**MRE/FRTAM Remarks**
7.2 If under the terms of this contract, Buyer has the obligation to declare a type and grade of latex and fails to make such declaration by the first (1st) business day of the month prior to the month of shipment, Seller may ship any latex complying with the type and grade requirements of ISO 2004 - 2024 but Buyer must be notified by receipt-acknowledged electronic communication not later than the fourth (4th) business day of the month prior to the month of shipment.		Agreed
7.3 If the Dry Rubber Content exceeds the type and grade requirements of ISO 2004 - 2024 or that specified in this contract the excess shall not be charged to Buyer and if the Dry Rubber Content is deficient by less than one third (1/3) per cent below the type and grade requirements of ISO 2004 - 2024 or that specified in this contract Buyer shall have no claim against Seller.		Agreed
7.4 If the Dry Rubber Content is deficient by one third (**1/3**) per cent but not below four-thirds (**4/3**) per cent of the type and grade requirements of ISO 2004 - 2024 or that specified in this contract an allowance shall be made by Seller to Buyer in accordance with the arithmetic procedure in Appendix 1. If the Dry Rubber Content is below four-thirds (**4/3**) per cent of the type and grade requirements of ISO 2004 - 2024 or that specified in this contract Buyer shall have the option, to be exercised only after analysis has been made as described in clause 7.5 below, of rejecting the latex and claiming default or of accepting the latex with an allowance provided the latex has not been removed from the flexitank. If Buyer decides to accept the latex the allowance shall be calculated in accordance with the arithmetic procedure in Appendix 2.	This clause offers greater clarity about how to compute allowances in the event of deficiency.	Agreed
7.5 The Dry Rubber Content is to be ascertained by the procedures of ISO 126:2005 or such subsequent standard adopted by the Management Committee of the International Rubber Association at the time of contract by an approved independent analyst mutually agreed by Buyer and Seller.	**Agreed**	To change 1. Buyer and Seller; and 2. ISO 126: 2005
7.6 In the event of a claim for quality arising from any cause whatsoever, failing amicable settlement, that claim shall be referred to arbitration.		Agreed
8. Quality Sampling In the absence of alternative specified sampling arrangements agreed between Buyer and Seller the following shall apply: **8.1** If Buyer wishes to test a representative sample of the latex before discharging the flexitank, he must arrange that the Shipper provides	Additional clause (agreed in principle at the TC meeting of 7th Oct 25) to allow alternative specified sampling arrangements – otherwise 8.1 et seq.	Agreed

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	**RTAE Remarks 15-12-25**	**MRE/FRTAM Remarks**
sample(s) in sealed bottles, which travel with the flexitank inside the container in a position accessible when the container right-side door is opened or that are sent separately in advance of the arrival of the flexitank at Buyers premises.	apply.	
8.2 If, following analysis of the samples in accordance with clause 7.5, the latex is outside specification as set out in clause 7.4 the full transport, shipping and insurance costs for the rejection are for the account of the Seller but If Buyer claims a default or allowance on the grounds that the latex quality is outside the specification agreed in the contract, but analysis of the samples shows the latex is within the specification in accordance with clause 7.3, Buyer must pay Seller threefold the full transport, shipping and insurance costs from FOB original port of loading. Where no samples have been sent in advance or included in the container and Buyer is unwilling to accept and discharge the latex from the flexitank(s) on the grounds of quality, he must immediately inform Seller of the reason together with all supporting evidence. If Seller disputes Buyer's reason, clause 7.6 applies. If Seller accepts Buyer's reason the parties shall promptly arrange onward carriage of the flexitank(s) for Seller's account.	**Agreed**	To follow drum contract and add for the rejection as below. **8.2** If, following analysis of the samples in accordance with clause 7.5, the latex is outside specification as set out in clause 7.4 the full transport, shipping and insurance costs for the rejection are for the account of the Seller but If Buyer claims a default or allowance on the grounds that the latex quality is outside the specification agreed in the contract, but analysis of the samples shows the latex is within the specification in accordance with clause 7.3, Buyer must pay Seller threefold the full transport, shipping and insurance costs from FOB original port of loading.
8.3 If sealed sample bottles have been provided and are to be tested, the contents of all the sample bottles are to be adequately blended/homogenised in accordance with either the ISO Method 123:2001 and/or the ASTM D1076:23, as agreed at the time of contract.	**Suggest we change ASTM to 1076:23**	We have checked with and the latest test method is ISO 123:2001 and ASTM D1076:23. RTAE to confirm if the ASTM standard can be written as ASTM D1076.
8.4 From the quantity so bulked, five (5) samples, each or not less than one half (0.5) litre shall be drawn into separate containers (of non-absorbent inner surface chemically resistant to latex). Each container shall be filled full, sealed air-tight and labelled.		Agreed
8.5 From the quantity so bulked, five (5) samples, each or not less than one half (0.5) litre shall be drawn into separate containers (of non-absorbent inner surface chemically resistant to latex). Each container shall be filled full, sealed air-tight and labelled.		Agreed
8.6 Two (2) samples shall be retained by Buyer's representatives and three (3) shall be retained by Seller's representatives, each to send one (1) sample to an approved independent analyst, the remaining samples to be kept for use in the event of arbitration and/or appeal against arbitration award.		Agreed

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	RTAE Remarks 15-12-25	MRE/FRTAM Remarks
8.7 All samples shall be kept within the temperature range of plus five (+5) and plus thirty (+30) degrees Celsius.		Agreed
9 Claims: **Claims in respect of Quality Specification** **9.1** In the event of a claim, other than a claim for rejection, failing amicable settlement, samples shall be tested by an approved independent analyst or a Regional Test Laboratory as mutually agreed by Buyer and Seller. If this analysis is to be final and binding on other parties then their agreement must also be obtained. In the case where this agreement is not possible then the Co-ordinating Test Laboratory shall perform the analysis. For the purpose of this Clause the Standards Laboratory of the Rubber Research Institute of Malaysia is appointed as the Co-ordinating Test Laboratory.		Agreed
9.2 If the quality is not in accordance with the contractual specification as confirmed by an approved independent analyst or Regional Test Laboratory, then Buyer shall accept the latex with a fair allowance to be decided upon by arbitration in the Arbitration Centre named in this Contract or subsequently agreed upon by Buyer and Seller, provided arbitrators are of the opinion that the latex as shipped was *bona fide* fulfilment of the contract. Should arbitrators decide that the latex as shipped was *non bona fide*, they shall fix an allowance and Buyer, if he has so claimed, shall have the option, to be exercised within five (5) business days from the issue of the award, of rejecting the latex and claiming default or accepting it with the allowance as the arbitrators shall award.		Agreed
Claims – General **9.3** Sealed sample or samples in support of the claim must be produced by Buyer to the Seller or his authorised representative within fifteen (**15**) business days from the date of discharge of the latex at the port of discharge named in the Contract. This period may be extended by agreement between the parties or at the discretion of the arbitrators, if the delay is due to circumstances over which the final Buyer has no control. The cost of sampling, supervision, analysis, despatch of samples promptly by air and all reasonable expenses and charges of Buyer's representative shall be paid by the Seller if a claim is sustained except in the case where such charges equal or exceed the amount of the award when arbitrators shall have the discretion to award those charges against either party.	**Incoterms now refer to port of discharge not port of destination**	RTAE to justify why change from port of destination in drum contract to port of discharge.

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	RTAE Remarks 15-12-25	**MRE/FRTAM Remarks**
9.4 Final notice in writing of the claim, stating the grounds of the complaint must be given by Buyer to the Seller or his authorised representative within five **(**5) business days of the expiry of the period stipulated above for the production of sample or samples otherwise the claim will be null and void. If a claim still remains in dispute at the end of a period of four (4) weeks from the date of discharge of the latex at the port of discharge, it shall be the responsibility of the Buyer to submit it to arbitration for settlement. Failure to take this step within fourteen (14) business days of the expiry of this period shall render the claim null and void.		Agreed
9.5 The Seller further agrees that the destination for the purpose of inspecting the goods shall be deemed, if Buyer so wishes, to be the factory or factories instead of ports named in the contract, provided always that the cost of transport and insurance from steamer to factory shall be for Buyer's account and the security seals of the container remain untampered. While in factory, the goods shall be at factory Buyer's risk.		Agreed
9.6 Factory in this contract shall include premises used for storage occupied by the proprietor of the factory whether or not the same shall be in the curtilage of the factory.		Agreed
9.7 In the event of final rejection, within five (5) business days of the receipt of the approved analyst's report or the award, Seller shall notify Buyer by receipt-acknowledged electronic communication of the onward carriage of the flexitank containers for Seller's account. Buyer shall carry out any instructions without undue delay.		Agreed
9.8 In the event of a claim, other than a claim for rejection, failing amicable settlement, samples shall be tested by an approved independent analyst as mutually agreed by Buyer and Seller. If this analysis is to be final and binding on other parties then their agreement must also be obtained. In the case where this agreement is not possible then the Member Association in the designated Centre of Arbitration given in clause 14.3 below shall appoint an analyst.		Agreed
9.9 Discharge of the latex from the flexitank shall constitute acceptance by Buyer of the latex quality		Agreed

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	**RTAE Remarks 15-12-25**	**MRE/FRTAM Remarks**
10. Frustration of Contract: **10.1** Should Seller be prevented from fulfilling his obligations hereunder during the period stipulated herein by reasons of act of God, act of Sovereign, government or parliament, consequences of hostilities or warlike operations, blockade, political or civil disturbances or insurrections, riots, strikes, lock-outs, combination of workmen or any other cause beyond his control which he could not reasonably have been expected to anticipate and such cause or causes continue for a period of twelve (12) calendar months from the commencement thereof, any obligations hereunder relating to shipments or deliveries the fulfilment of which is thus prevented and payment therefore shall be cancelled and no claim shall lie by either party against the other in respect of loss or damage arising out of such cancellation		Agreed
10.2 Should such cause or causes continue for a period of less than twelve (**12**) calendar months any outstanding shipments shall be shipped and any outstanding obligations hereunder shall be fulfilled as soon as possible after such cause(s) cease(s) to operate but in no event later than six (**6**) calendar months after such cessation.		Agreed
11. Declaration: **11.1** Seller shall give Buyer the following: **11.2** Declaration of shipment must be issued by the Seller or his authorised representative and must state the contract reference, flexitank container details and numbers, weight, name of vessel and Bill of Lading date.		Agreed
11.3 The declaration of shipment must be issued by receipt-acknowledged electronic communication to ensure receipt within nine (9) calendar days of the date of the Bill of Lading or the date of first transshipment into ocean-going vessel as marked on the through Bill of Lading (subject to the provisions of clause 11.5 below) in case of CIF contract or within six (6) calendar days for any other terms to enable a FOB or C & F Buyer to cover insurance.	Electronic communication encompasses all varieties. Clause numbering is correct in original draft.	Follow drum contract for consistency. The Declaration of Shipment must be issued by receipt-acknowledged telefax or e-mail to ensure receipt within nine (9) calendar days of the date of the Bill of Lading or the date of first transshipment into ocean-going vessel as marked on the through Bill of Lading (subject to the provisions of para. 10. (A) (iii) below) in case of CIF contract or within six (**6**) calendar days for any other terms to enable a FOB or C & F Buyer to cover insurance.
11.4 Failure by the Seller to issue the declaration of shipment within the period specified in 11.3 shall entitle the Buyer to claim for such damages as he shall prove to have sustained.		Agreed

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	**RTAE Remarks 15-12-25**	**MRE/FRTAM Remarks**
11.5 In no case shall a declaration of shipment be issued by the Seller or his authorised representative later than the twenty-first (21st) calendar day following the last day of the period of shipment. Failure to issue the declaration of shipment within this period shall constitute a default and the twenty-second (22nd) calendar day following the last day of the period of shipment shall be deemed to be the date established as the date of default for invoicing back purposes, failing an amicable settlement prior to that date.		Agreed
11.6 Without the consent of the Buyer, a declaration of shipment, which on the face of it complies with the contract, shall not be withdrawn or altered except in the case of a *bona fide* error, of which the Seller must furnish adequate proof.		Agreed
11.7 Any notice to be given under this contract must be made with due despatch to the last known place of business of the party to whom it is addressed.		Agreed
11.8 All parties must acknowledge receipt of every notice or declaration.		Agreed
11.9 When an act has to be done on or before a given day, and such day shall happen to be a non-business day, such act must be done on or before the next business day, unless provision is made to the contrary in these conditions.		Agreed
12. Freight: Freight under C&F and CIF. contracts to be for Seller's account. Any alteration in freight resulting from circumstances which entitle a shipping company to vary the freight rate without notice shall, if made after the date of contract and before the date of the Bill of Lading, be shared equally between Buyer and Seller.		Agreed
13. Arbitration: **13.1** When either party to this contract claims that a default has occurred, then failing an amicable settlement, the dispute shall be placed before arbitrators and if the latter decide that a default has occurred, the contract shall be closed out at a price and weight, which price shall be the estimated market value of the latex contracted for on the day the default has occurred or is established within the discretion of the arbitrators with a penalty of not less than one (**1**) percent of the value of the contract or the equivalent		Agreed

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	**RTAE Remarks 15-12-25**	**MRE/FRTAM Remarks**
thereof in the currency of the injured party.		
13.2 All arbitrations shall be held in accordance with the provisions of the constitution of a Member Association in the designated Centre of Arbitration given in clause 14.3 below and, unless arbitrators otherwise direct, all differences due under any arbitration award, whether arising out of claims for default, or claims on quality, or otherwise, shall be paid in cash within seven (7) business days from the receipt of the award. In the event of an appeal, payment may be suspended pending the result of the appeal; but should the award be upheld the amount due shall be increased by interest at bank rate for the contract currency in the country of the sustained party and payment shall be due within three (3) business days of the result of the appeal being made known to the losing party.		Agreed
13.3 Any dispute arising out of this contract shall be settled at the designated Centre of Arbitration mentioned below, unless otherwise agreed upon between Buyer and Seller: **Regional Port of Destination** — **Regional Centre of Arbitration** Central and North America — New York Europe including Russia & Turkey — London Australasia, Asia, Africa & South America — Singapore or Kuala Lumpur or Jakarta or Bangkok at the choice of the party whose application for arbitration is first received at that Regional Centre of Arbitration. If applications are received from both parties at different Regional Centres of Arbitration on the same date, Sellers choice of Regional Arbitration Centre shall prevail. Japan — Tokyo		Agreed

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	RTAE Remarks 15-12-25	MRE/FRTAM Remarks
This contract shall be construed according to the laws of the country wherein arbitration shall take place whatever be the residence or nationality of the parties, and its performance shall, in every part and incident, be considered due in that country for the purpose of jurisdiction, and the courts and arbitrators in that country shall have absolute jurisdiction over all disputes which may arise under this contract, and decisions shall be enforceable as final judgements in any country.		
13.4 In the event of there being more than one contract existing between the same parties, which shall be closed in pursuance of an Association's constitution, an account shall be taken of what is due from the one party to the other in respect of such contracts, and the sum due from the one party shall be set off against the sum from the other party, and the balance of the accounts and no more shall be claimed or paid on either side respectively.		Agreed
13.5 When the subject matter and terms of contracts are identical or identical except as to date, quantity or price, all arbitrations in respect of quality or condition shall be held between First Seller and Last Buyer or their authorised representatives and the award made in pursuance thereof, subject to the right of appeal to the Association, shall also be binding on all intermediary parties providing that the terms of the contract have been duly fulfilled so far as they are concerned.		Agreed
14. Disputes arising from different interpretations of the terminology of this contract shall be referred to the Management Committee of the International Rubber Association (IRA). All special clauses proposed by any Member Association using this contract shall be notified to the Management Committee of the International Rubber Association prior to their adoption. If in the opinion of the Management Committee any such clauses should properly form part of this contract rather than of the special trading terms of an individual Association, the Management Committee shall inform the Association concerned, and users of this contract shall not be bound by such special terms. The terms and conditions of the International Contract shall take precedence until the matter is resolved. The Management Committee shall be responsible for notifying all Member Associations of any special terms sent to them. No Member Association using this contract shall be bound by the special trading terms of another Association until they have received and acknowledged a copy of such terms. **Glossary:**		Agreed

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	RTAE Remarks 15-12-25	MRE/FRTAM Remarks
For the present, recognised Regional Laboratories include the test laboratories of: Rubber Research Institute of Cambodia-Panom Penh, Cambodia National Rubber Quality Supervision Testing Center-Haikou, Hainan, China CIRAD-CP Chimie Technologie Hevea-Montpellier, France Rubber Consultants c/o Tun Abdul Razak Research Centre, United Kingdom Processing & Quality Control Division-Kottayam, Kerala, India Pusat Pengajian Mutu Barang Eksport Import-Jarkarta , Indonesia Malaysian Rubber Board - Kuala Lumpur, Malaysia Philippine Rubber Testing Centre-Kabacan, Cotabato, Philippines TUV SUD PSB Pte Ltd, Singapore Rubber Industry Group, Rubber Research Institute of Thailand Rubber Research Institute of Vietnam-Ho Chi Minh City, Vietnam ***Through Bill of Lading*** shall mean a Bill of Lading issued by a local carrier with authorisation to act on behalf of the ocean-going carrier calling for shipment into a specific ocean-going vessel scheduled for continent of destination. ***A recognised sampler*** is one which is included in the list of recognised samplers maintained by the Secretariat of the International Rubber Association. ***A shut-out*** is deemed to occur when loading of latex is not permitted by a shipping company on a vessel for which space had previously been booked. ***Port of discharge*** is the place where the cargo is offloaded from sea or ocean transport . ***Date of discharge*** is the date of clearance of the cargo from the port of discharge. ***Destination*** means port of discharge, place of delivery or in factory. With a Combined Transport Bill of Lading ***Place of Delivery*** is the place where the cargo is released to the consignee. ***Recognised Weigh Bridge Operator*** is one audited and licensed by their local authorities.		

2Q Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Flexitank Containers 31-12-25	**RTAE Remarks 15-12-25**	**MRE/FRTAM Remarks**
APPENDICES **Appendix 1** ***Pertaining to Clause 7.4*** Allowance = Contract Price Wet Weight - (Contract Price Wet Weight/Contracted DRC) x Deficient DRC Where DRC is the Dry Rubber Content		Agreed
Appendix 2 ***Pertaining to Clause 7.4*** Allowance = Contract Price Wet Weight - (Contract Price Wet Weight/Contracted DRC) x Double the Deficiency of the Deficient DRC Where DRC is the Dry Rubber Content		Agreed

<ASSOCIATION NAME>

PRESERVED RUBBER (*Hevea brasiliensis*) LATEX BY CARRIAGE IN TANK CONTAINERS

INTERNATIONAL CONTRACT

We have this day SOLD upon the terms of this Contract, TO : ....
BOUGHT FROM

including the Conditions hereinafter contained or referenced, the following:

Contract No.:

Latex Type (including preservative):

Quantity: Shipment
Landed

Packing in specified Tank Containers only

From (Port):

Destination:

Contract Type (CIF/C&F/FOB):

Price per kilogramme or lb (Wet Weight):

Freight: Prepaid
Payable at destination

Shipment Period/Vessel:

Broker/Intermediary: Brokerage/Commission:

Payment:

Weighing/Sampling at: (Port of Shipment/Port of Discharge/Factory)

Arbitration: Regional Centre (otherwise at ………………)

Remarks:

Subject to the Regulations and Conditions governing the International Contract for Preserved Rubber (*Hevea brasiliensis*) Latex By Carriage In Tank Containers and to the Special Trading Terms and Conditions of the <Association Name> in force at the date of this Contract.

3R Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Tank Containers 31-12-25	RTAE Remarks	IRA Technical Sub-Committee Remarks
1. General: **1.1** When preserved rubber latex is sold for shipment by month or for a specified part of a month, each shipment is to be treated as a separate contract. **1.2** For shipment in tank container loads, each container load shall be treated as a separate contract but bearing the same contract number with a sequential numeral to differentiate. **1.3** Unless the context otherwise requires, words importing the singular number only shall include the plural number, and words importing the plural number only shall include the singular number, and words importing persons shall include firms and corporations. **1.**4 Minor typographical errors in the printing of an individual contract shall not void the contract.		
2. Quantity: **2.1** Contracts shall be for specified quantities only. **2.2** Shipment quantities shall consist of full tank containers suitable for the transport of latex and fit for export and in accordance with clause 6.1 below. **2.3** Disputes arising over variances between specified quantities and quantities actually shipped shall be settled between Buyer and Seller, or, failing such agreement, subject to arbitration. **2.4** The word 'ton' shall mean a metric ton of one thousand (1,000) kilogrammes. If the contract weight is expressed in avoirdupois two point two zero four six (2.2046) lbs shall equal one (1) kilogramme. **2.5** When the word 'about' is used to qualify quantities contracted, no excess or deficiency between contracted and shipped weights shall be greater than one half (½) per cent of the contract quantity or for any monthly portion of a contract. **2.6** Any excess or deficiency between contracted and shipped weights above one-half (½) per cent up to and including two (2) per cent shall be invoiced or invoiced back, as the case may be, at the contract price. **2.7** Should the excess or deficiency be greater than two (2) per cent, the whole of the excess or deficiency over the contract quantity or any monthly portion of the contract quantity, shall, failing agreement between Buyer and Seller, be invoiced or invoiced back, at a price fixed by arbitration. **2.8** Any difference in shipment and landed weights excludes theft, pilferage and damage in transit.		

3R Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Tank Containers 31-12-25	RTAE Remarks	IRA Technical Sub-Committee Remarks
2.9 No accounts shall be rendered for less than ten (10) United States dollars or its equivalent (excluding brokerage).		
3. Weighing: **3.1** Buyer shall weigh the preserved rubber latex at port of shipment, port of destination or in Buyer's factory as specified at the time of contract. **3.2** Buyer shall weigh the whole delivery vehicle with full tank container on the factory weighbridge on arrival to determine the gross weight. **3.3** The weighbridge used shall be maintained to public weighbridge standard at destination. The driver of the delivery vehicle, if not an employee of the Buyer, shall be the Seller's representative at the weighing. **3.4** Prior to tare weighing the tank container shall be inspected through the manhole and agreed to be empty by the driver and the Buyer. Buyer shall then weigh the whole delivery vehicle with empty tank container to determine the tare weight. The gross weight less the tare weight shall be the nett weight of latex delivered. **3.5** Buyer claiming an adjustment by reason of the nett landed weights differing from the nett shipping weights, as provided for in clauses 2.6 and 2.7, shall provide within fifteen (15) business days of the date of discharge of the latex at the port of discharge or within three (3) business days upon arrival at the consumer's factory, whichever is earlier, a copy of the nett landed weights as specified in clause 3.2 above. **3.6** If a weight deficiency is found and it exceeds one half (½) percent of the invoiced weight, the cost of weighing shall be borne by the Seller, otherwise it shall be borne by the Buyer.		
4. Insurance: **4.1** Terms of insurance shall be as agreed between Buyer and Seller at the time of the contract and cover shall be arranged on a warehouse-to-warehouse basis.		
5. Shipment: **5.1** To be shipped by vessel or vessels loading or commencing to load in port of shipment (and loading continuously therein till date of shipment), per terms of contract, with transit direct and/or indirect, with liberty to call and/or transship at other ports. **5.2** The latex must be shipped by a vessel scheduled to sail to the port of destination or any alternative destination as mutually agreed between Buyer and Seller, or in the case of transshipment must be on a through Bill of Lading, or otherwise the Bill of Lading must be endorsed by, or a certificate obtained from the Shipping Company that transshipment has been effected and that the latex is actually on board a vessel scheduled to sail as above.		

3R Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Tank Containers 31-12-25	RTAE Remarks	IRA Technical Sub-Committee Remarks
5.3 When latex is sold for shipment by month or for a specified part of a month, each shipment shall be treated as a separate contract. Each container shall be treated as a separate contract for the settlement of weight or quality claims though more than one container may be shipped on a single Bill of Lading. **5.4** Bill of Lading date shall be proof of time of shipment in the absence of conclusive evidence to the contrary. **5.5** A Bill of Lading dated in the month immediately following the contractual month(s) shall be a good tender provided that it contains the following warranty endorsed on the Bill of Lading and signed by the shipowners or on their behalf by their authorised agents. *Warranted that the vessel commenced loading in the port of shipment in (month) and has been continuously loading therein until date of shipment which is the date of this Bill of Lading.* **5.6** A Bill of Lading dated in the month immediately preceding the contract month(s) shall be tender provided that it contains the following warranty endorsed and signed as above: *Warranted that the vessel has been continuously loading in the port of shipment since the date of this Bill of Lading and that the date of its final departure from the port was ………………………………* (This date must be within the contract month(s)). **5.7** If under the terms of this contract, the Buyer has the obligation to declare a port of destination and/or nominate a vessel and fails to do so by the fifth (5th) business day prior to the month of shipment, then the latex may be shipped to a port in the country of destination or if no country of destination has been stated, to a port customarily serving the country in which the Buyer is domiciled, at the Seller's option but Buyer to be notified by receipt-acknowledged electronic communication not later than three (3) business days after the fifth (5th) business day prior to month of shipment. **5.8** A Seller who has the option to ship from more than one port must declare the port from which he intends to ship on or before the sixth (6th) business day prior to the month of shipment to enable the Buyer to fulfil his obligation as stipulated in clause 5.7 **5.9** In the case of contracts calling for shipment through a specified period, where cargo is shut-out, or a vessel omits ports specified in the contract, and when no other vessel is available during the shipment period, the Buyer or the Seller shall be entitled to claim shut-out and invoke clause 10**,** upon production of an appropriate certificate issued by the shipping company or its authorised agent. **5.10** If the latex has been sold for shipment on a named vessel, and this vessel, through change of schedule, should omit ports specified in the contract or the latex should be shut-out of said vessel, the party responsible for supplying the space shall, within nine (9) calendar days		

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after being informed, nominate the next vessel on which space is available to the required port scheduled to sail not earlier than the scheduled sailing date of the named vessel (failing which the other party shall be entitled to nominate the vessel). **5.11** Should the loading date for the substituted vessel be more than three (3) weeks after the loading date for the original nominated vessel, all additional expenses related to the delayed shipment accrued or incurred at the loading end, shall be for the account of the party responsible for supplying the space.		
6. Packing: **6.1** Tank Container Where the contract type is FOB, Buyer shall be responsible for arranging the supply of tank containers to the loading factory or to the container yard at the Seller's shipment port. In all other contract types the responsibility shall be Seller's. Each tank container shall be supplied with a cleanliness certificate from the place the tank container was last cleaned. By loading the tank container, the Seller accepts it was clean and fit for the carriage of latex. Buyer shall inspect seals on the tank container and on the discharge valves. Absent or broken seals, unless replaced by Customs, must be reported to Seller before any discharge of latex. Buyer may reject the tank container of latex if the seals are not intact.		
7. Quality: **7.1** Unless otherwise specified in this contract, latex shall comply with the type and grade requirements of ISO natural rubber latex concentrate — centrifuged or creamed, ammonia-preserved types — specifications, ISO 2004 – 2024 (hereinafter referred to as ISO 2004 – 2024) or such subsequent standard adopted by the Management Committee of the International Rubber Association at the time of contract. **7.2** If under the terms of this contract, Buyer has the obligation to declare a type and grade of latex and fails to make such declaration by the first (1st) business day of the month prior to the month of shipment, Seller may ship any latex complying with the type and grade requirements of ISO 2004 - 2024 but Buyer must be notified by receipt-acknowledged electronic communication not later than the fourth (4th) business day of the month prior to the month of shipment. **7.3** If the Dry Rubber Content exceeds the type and grade requirements of ISO 2004 - 2024 or that specified in this contract the excess shall not be charged to Buyer and if the Dry Rubber Content is deficient by less than one third (1/3) per cent below the type and grade requirements of ISO 2004 - 2024 or that specified in this contract Buyer shall have no claim against Seller.	This clause offers a specification model but in no way restricts the specification Buyer and Seller may agree.	

3R Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Tank Containers 31-12-25	RTAE Remarks	IRA Technical Sub-Committee Remarks
7.4 If the Dry Rubber Content is deficient by one third (1/3) per cent but not below four-thirds (4/3) per cent of the type and grade requirements of ISO 2004 - 2024 or that specified in this contract an allowance shall be made by Seller to Buyer in accordance with the arithmetic procedure in Appendix 1. If the Dry Rubber Content is below four-thirds (4/3) per cent of the type and grade requirements of ISO 2004 - 2024 or that specified in this contract Buyer shall have the option, to be exercised only after analysis has been made as described in clause 7.5 below, of rejecting the latex and claiming default or of accepting the latex with an allowance provided the latex has not been removed from the flexitank. If Buyer decides to accept the latex the allowance shall be calculated in accordance with the arithmetic procedure in Appendix 2. **7.5** The Dry Rubber Content is to be ascertained by the procedures of ISO 126 – 2005 or such subsequent standard adopted by the Management Committee of the International Rubber Association at the time of contract by an approved independent analyst mutually agreed by Seller and Buyer **7.6** In the event of a claim for quality arising from any cause whatsoever, failing amicable settlement, that claim shall be referred to arbitration.	This clause offers greater clarity about how to compute allowances in the event of deficiency.	
8. Quality Sampling **8.1** Samples shall be drawn by an approved sampler or jointly by Buyer's and Seller's representatives at the place agreed in the contract. If the Seller has not named his representative, the labels of the samples shall be signed and sealed by Buyer in conjunction with an independent recognised sampler and shall be accepted by the Seller. **8.2** Before opening the manhole, Buyer and driver shall confirm seals on the manhole and outlet valve are correct and intact. Tank containers shall be sampled through the manhole at the top middle and bottom of the tank. One (1) litre from each layer to be adequately blended/homogenised in accordance with either the ISO Method 123:2001 and/or the ASTM D1076:23, as agreed at the time of contract. **8.3** Two (2) samples shall be retained by Buyer's representatives and three (3) shall be retained by Seller's representatives, each to send one (1) sample to an approved independent analyst, the remaining samples to be kept for use in the event of arbitration and/or appeal against arbitration award. **8.4** All samples shall be kept within the temperature range of plus five (+5) and plus thirty (+30) degrees Celsius.	The previous draft (3X) had clause 8.5 which duplicated most of clause 9.2. It has therefore been deleted.	

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9 Claims: **Claims in respect of Quality Specification** **9.1** In the event of a claim, other than a claim for rejection, failing amicable settlement, samples shall be tested by an approved independent analyst or a Regional Test Laboratory as mutually agreed by Buyer and Seller. If this analysis is to be final and binding on other parties then their agreement must also be obtained. In the case where this agreement is not possible then the Co-ordinating Test Laboratory shall perform the analysis. For the purpose of this Clause the Standards Laboratory of the Rubber Research Institute of Malaysia is appointed as the Co-ordinating Test Laboratory. **9.2** If the quality is not in accordance with the contractual specification as confirmed by an approved independent analyst or Regional Test Laboratory, then Buyer shall accept the latex with a fair allowance to be decided upon by arbitration in the Arbitration Centre named in this Contract or subsequently agreed upon by Buyer and Seller, provided arbitrators are of the opinion that the latex as shipped was *bona fide* fulfilment of the contract. Should arbitrators decide that the latex as shipped was *non bona fide*, they shall fix an allowance and Buyer, if he has so claimed, shall have the option, to be exercised within five (5) business days from the issue of the award, of rejecting the latex and claiming default or accepting it with the allowance as the arbitrators shall award. **Claims – General** **9.3** Sealed sample or samples in support of the claim must be produced by Buyer to the Seller or his authorised representative within fifteen (15) business days from the date of discharge of the latex at the port of discharge named in the Contract. This period may be extended by agreement between the parties or at the discretion of the arbitrators, if the delay is due to circumstances over which the final Buyer has no control. The cost of sampling, supervision, analysis, despatch of samples promptly by air and all reasonable expenses and charges of Buyer's representative shall be paid by the Seller if a claim is sustained except in the case where such charges equal or exceed the amount of the award when arbitrators shall have the discretion to award those charges against either party. **9.4** Final notice in writing of the claim, stating the grounds of the complaint must be given by Buyer to the Seller or his authorised representative within five (5) business days of the expiry of the period stipulated above for the production of sample or samples otherwise the claim will be null and void. If a claim still remains in dispute at the end of a period of four (4) weeks from the date of discharge of the latex at the port of discharge, it shall be the responsibility of the Buyer to submit it to arbitration for settlement. Failure to take this step within fourteen (14) business days of the expiry of this period shall render the claim null and void. **9.5** The Seller further agrees that the destination for the purpose of inspecting the goods shall		

3R Draft Preserved Rubber *(Hevea brasiliensis)* Latex by Carriage in Tank Containers 31-12-25	RTAE Remarks	IRA Technical Sub-Committee Remarks
be deemed, if Buyer so wishes, to be the factory or factories instead of ports named in the contract, provided always that the cost of transport and insurance from steamer to factory shall be for Buyer's account and the security seals of the container remain untampered. While in factory, the goods shall be at factory Buyer's risk. **9.6** Factory in this contract shall include premises used for storage occupied by the proprietor of the factory whether or not the same shall be in the curtilage of the factory. **9.7** In the event of Buyer claiming rejection Seller may within five (5) business days request that a second (2nd) sample or samples be taken in the presence of Buyer's and Seller's representatives, as in clauses 6.1 to 6.6 and shall be tested by an independent analyst as agreed by Buyer and Seller. Should Seller not name his representative at the time of requesting the second (2nd) samples, then the labels of the samples shall be signed and sealed by Buyer in conjunction with an independent recognised sampler and shall be accepted by the Seller. **9.8** This result shall be final and binding on all parties. **9.9** The cost of second (2nd) sampling, supervision, analysis, despatch of samples promptly by air and all reasonable expenses and charges of Buyer's representative shall be paid by the Seller if a claim for rejection is sustained. **9.10** In the event of final rejection, within five (5) business days of the receipt of the approved analyst's report or the award, Seller shall notify Buyer by receipt-acknowledged electronic communication of the onward carriage of the tank containers for Seller's account. Buyer shall carry out any instructions without undue delay. **9.11** In the event of a claim, other than a claim for rejection, failing amicable settlement, samples shall be tested by an approved independent analyst as mutually agreed by Buyer and Seller. If this analysis is to be final and binding on other parties then their agreement must also be obtained. In the case where this agreement is not possible then the Member Association in the designated Centre of Arbitration given in clause 14.3 below shall appoint an analyst. **9.12** Discharge of the latex from the tank container shall constitute acceptance by Buyer of the latex quality		
10. Frustration of Contract: **10.1** Should Seller be prevented from fulfilling his obligations hereunder during the period stipulated herein by reasons of act of God, act of Sovereign, government or parliament, consequences of hostilities or warlike operations, blockade, political or civil disturbances or insurrections, riots, strikes, lock-outs, combination of workmen or any other cause beyond his control which he could not reasonably have been expected to anticipate and such cause or causes continue for a period of twelve (12) calendar months from the commencement thereof,		

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any obligations hereunder relating to shipments or deliveries the fulfilment of which is thus prevented and payment therefore shall be cancelled and no claim shall lie by either party against the other in respect of loss or damage arising out of such cancellation. **10.2** Should such cause or causes continue for a period of less than twelve (12) calendar months any outstanding shipments shall be shipped and any outstanding obligations hereunder shall be fulfilled as soon as possible after such cause(s) cease(s) to operate but in no event later than six (6) calendar months after such cessation.		
11. Declaration: **11.1** Seller shall give Buyer the following: **11.2** Declaration of shipment must be issued by the Seller or his authorised representative and must state the contract reference, tank container details and numbers, weight, name of vessel and Bill of Lading date. **11.3** The declaration of shipment must be issued by receipt-acknowledged electronic communication to ensure receipt within nine (9) calendar days of the date of the Bill of Lading or the date of first transshipment into ocean-going vessel as marked on the through Bill of Lading (subject to the provisions of clause 11.5 below) in case of CIF contract or within six (6) calendar days for any other terms to enable a FOB or C & F Buyer to cover insurance. **11.4** Failure by the Seller to issue the declaration of shipment within the period specified in clause 11.3 shall entitle the Buyer to claim for such damages as he shall prove to have sustained. **11.5** In no case shall a declaration of shipment be issued by the Seller or his authorised representative later than the twenty-first (21st) calendar day following the last day of the period of shipment. Failure to issue the declaration of shipment within this period shall constitute a default and the twenty-second (22nd) calendar day following the last day of the period of shipment shall be deemed to be the date established as the date of default for invoicing back purposes, failing an amicable settlement prior to that date. **11.6** Without the consent of the Buyer, a declaration of shipment, which on the face of it complies with the contract, shall not be withdrawn or altered except in the case of a *bona fide* error, of which the Seller must furnish adequate proof. **11.7** Any notice to be given under this contract must be made with due despatch to the last known place of business of the party to whom it is addressed. **11.8** All parties must acknowledge receipt of every notice or declaration.		

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11.9 When an act has to be done on or before a given day, and such day shall happen to be a non-business day, such act must be done on or before the next business day, unless provision is made to the contrary in these conditions.		
12. Freight: Freight under C&F and CIF. contracts to be for Seller's account. Any alteration in freight resulting from circumstances which entitle a shipping company to vary the freight rate without notice shall, if made after the date of contract and before the date of the Bill of Lading, be shared equally between Buyer and Seller.		
13. Arbitration: **13.1** When either party to this contract claims that a default has occurred, then failing an amicable settlement, the dispute shall be placed before arbitrators and if the latter decide that a default has occurred, the contract shall be closed out at a price and weight, which price shall be the estimated market value of the latex contracted for on the day the default has occurred or is established within the discretion of the arbitrators with a penalty of not less than one (1) percent of the value of the contract or the equivalent thereof in the currency of the injured party. **13.2** All arbitrations shall be held in accordance with the provisions of the constitution of a Member Association in the designated Centre of Arbitration given in clause 14.3 below and, unless arbitrators otherwise direct, all differences due under any arbitration award, whether arising out of claims for default, or claims on quality, or otherwise, shall be paid in cash within seven (7) business days from the receipt of the award. In the event of an appeal, payment may be suspended pending the result of the appeal; but should the award be upheld the amount due shall be increased by interest at bank rate for the contract currency in the country of the sustained party and payment shall be due within three (3) business days of the result of the appeal being made known to the losing party. **13.3** Any dispute arising out of this contract shall be settled at the designated Centre of Arbitration mentioned below, unless otherwise agreed upon between Buyer and Seller: **<u>Regional Port of Destination</u>** — **<u>Regional Centre of Arbitration</u>** Central and North America — New York Europe inc. Russia & Turkey — London Australasia, Asia, Africa & South America — Singapore or Kuala Lumpur or Jakarta or Bangkok at the choice of the party whose application for arbitration is first received at that		

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Regional Centre of Arbitration. If applications are received from both parties at different Regional Centres of Arbitration on the same date, Sellers choice of Regional Arbitration Centre shall prevail. Japan Tokyo This contract shall be construed according to the laws of the country wherein arbitration shall take place whatever be the residence or nationality of the parties, and its performance shall, in every part and incident, be considered due in that country for the purpose of jurisdiction, and the courts and arbitrators in that country shall have absolute jurisdiction over all disputes which may arise under this contract, and decisions shall be enforceable as final judgements in any country. **13.4** In the event of there being more than one contract existing between the same parties, which shall be closed in pursuance of an Association's constitution, an account shall be taken of what is due from the one party to the other in respect of such contracts, and the sum due from the one party shall be set off against the sum from the other party, and the balance of the accounts and no more shall be claimed or paid on either side respectively. **13.5** When the subject matter and terms of contracts are identical or identical except as to date, quantity or price, all arbitrations in respect of quality or condition shall be held between First Seller and Last Buyer or their authorised representatives and the award made in pursuance thereof, subject to the right of appeal to the Association, shall also be binding on all intermediary parties providing that the terms of the contract have been duly fulfilled so far as they are concerned.		
14. Disputes arising from different interpretations of the terminology of this contract shall be referred to the Management Committee of the International Rubber Association (IRA). All special clauses proposed by any Member Association using this contract shall be notified to the Management Committee of the International Rubber Association prior to their adoption. If in the opinion of the Management Committee any such clauses should properly form part of this contract rather than of the special trading terms of an individual Association, the Management Committee shall inform the Association concerned, and users of this contract shall not be bound by such special terms. The terms and conditions of the International Contract shall take precedence until the matter is resolved. The Management Committee shall be responsible for notifying all Member Associations of any special terms sent to them. No Member Association using this contract shall be bound by the special trading terms of another Association until they have received and acknowledged a copy of such terms.		

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Glossary: ***For the present, recognised Regional Laboratories*** include the test laboratories of: Rubber Research Institute of Cambodia-Panom Penh, Cambodia National Rubber Quality Supervision Testing Center-Haikou, Hainan, China CIRAD-CP Chimie Technologie Hevea-Montpellier, France Rubber Consultants c/o Tun Abdul Razak Research Centre, United Kingdom Processing & Quality Control Division-Kottayam, Kerala, India Pusat Pengajian Mutu Barang Eksport Import-Jarkarta , Indonesia Malaysian Rubber Board - Kuala Lumpur, Malaysia Philippine Rubber Testing Centre-Kabacan, Cotabato, Philippines TUV SUD PSB Pte Ltd, Singapore Rubber Industry Group, Rubber Research Institute of Thailand Rubber Research Institute of Vietnam-Ho Chi Minh City, Vietnam. ***Through Bill of Lading*** shall mean a Bill of Lading issued by a local carrier with authorisation to act on behalf of the ocean-going carrier calling for shipment into a specific ocean-going vessel scheduled for continent of destination. ***A recognised sampler*** is one which is included in the list of recognised samplers maintained by the Secretariat of the International Rubber Association. ***A shut-out*** is deemed to occur when loading of latex is not permitted by a shipping company on a vessel for which space had previously been booked. ***Port of discharge*** is the place where the cargo is offloaded from sea or ocean transport. ***Date of discharge*** is the date of clearance of the cargo from the port of discharge. ***Destination*** means port of discharge, place of delivery or in factory. With a Combined Transport Bill of Lading ***Place of Delivery*** is the place where the cargo is released to the consignee. ***Recognised Weigh Bridge Operator*** is one audited and licensed by their local authorities.		
APPENDICES		
Appendix 1 ***Pertaining to Clause 7.4*** Allowance = Contract Price Wet Weight - (Contract Price Wet Weight/Contracted DRC) x		

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Deficient DRC Where DRC is the Dry Rubber Content **Appendix 2** ***Pertaining to Clause 7.4*** Allowance = Contract Price Wet Weight - (Contract Price Wet Weight/Contracted DRC) x Double the Deficiency of the Deficient DRC Where DRC is the Dry Rubber Content		